

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV00678

GRADECON CONSTRUCTION, INC. v. CAPURRO

MOTION TO BE RELIEVED AS COUNSEL

The unopposed motion to be relieved is granted. If there is no opposition to the tentative, the Court will sign the proposed order submitted by counsel. Once the order is signed, counsel is directed to serve copies of the signed order on Weston Capurro, and separately upon Kipp Webb, and Francesca Webb, in their individual and trustee capacities.

No. 23CV02138

CALDERAS v. SEASCAPE RESORT LTD.

(UNOPPOSED) MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

The motion is granted.

The Court finds that the settlement falls within a range of reasonableness and is presumptively valid; appears to be a product of serious, informed and non-collusive negotiations; and has no obvious deficiencies. The Court grants preliminary approval of the settlement; conditionally certifies the class; and approves the class notice as to form and content provided the Notice is issued in both English and Spanish languages.

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Counsel should appear to set a final hearing on the question of whether the proposed class action settlement, class counsel's fees and expenses, the class representative's enhancement award, and the administrator's fees and costs should be finally approved as fair, reasonable and adequate as to the members of the settlement class, and to correct the language in paragraph 11 of the proposed order.

No. 25CV00973

COSTA v. GENERAL MOTORS, LLC

PLAINTIFF'S MOTION TO STAY PROCEEDINGS

The motion for a stay is denied.

I. BACKGROUND AND MOTION

Plaintiff filed a complaint against General Motors, LLC ("GM") relating to his purchase of a vehicle. Plaintiff maintains that he purchased the Chevy Colorado at issue on May 10 2017, and filed the complaint on March 27, 2025. GM filed a series of demurrers in response to the complaint, the first amended complaint and the second amended complaint. The Court sustained without leave to amend the first, second, and third causes of action in the first amended complaint (Song Beverly express warranty claims). It permitted leave to amend for the implied warranty claim, and thereafter on February 2, 2026, plaintiff filed his second amended complaint ("SAC") with two causes of action: implied warranty and fraudulent concealment. GM filed a demurrer to the SAC, attacking the implied warranty claim as barred by the statute of limitations. This Court agreed, finding that the four-year statute expired nearly four years before plaintiff filed his complaint. After this last demurrer, there remains one cause of action: fraudulent inducement – concealment.

There is a pending motion for summary judgment, filed by GM, to be heard on September 15, 2026. Trial call is set for October 8, 2026.

Plaintiff seeks a stay of these proceedings, pending the Second District Court of Appeal's resolution of *Price v. General Motors* (B353231), "pursuant to the Court's 'inherent power to stay proceedings in the interest of justice and to promote judicial efficiency' [Citation.]" (Mtn. at p. 3.) Plaintiff asserts the *Price* appeal will solve a disputed area of the new law: "whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect." (Decl. of Lister at ¶ 9.)